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Case Number: 25PSCV03703 Hearing Date: September 3, 2026 Dept: 6

CASE

NAME: Sergios

Machado v. Ford Motor Company, et al.

Mani

Arabi of Strategic Legal Practices, APC's Motion to be Relieved as Counsel for Plaintiff Sergio Machado

TENTATIVE

RULING

The Court GRANTS Mani Arabi of Strategic Legal Practices, APC's Motion to be Relieved as Counsel for Plaintiff Sergio Machado, effective upon filing proof of service of the signed order on the client.

Counsel is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law case. On October 14, 2025, plaintiff Sergios Machado (Plaintiff) filed this action against defendants Ford Motor Company (Manufacturer), Performance Ford (Dealership) (collectively, Defendants) and Does 1 through 10, alleging causes of action for violation of subdivision (d) of Civil Code section 1793.2, violation of subdivision (b) of Civil Code section 1793.2, violation of subdivision (a)(3) of Civil Code section 1793.2, breach of the implied warranty of merchantability, negligent repair, and fraudulent inducement – concealment. On November 17, 2025, Defendants answered

the Complaint. On January 27, 2026, the Court granted Manufacturer's Motion for Judgment on the Pleadings as to the Sixth Cause of Action for fraudulent inducement – concealment without leave to amend.

On August 6, 2026, Mani Arabi of Strategic Legal Practices, APC moved to be relieved as counsel for Plaintiff. The motion is unopposed.

LEGAL

STANDARD

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted, provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.)

A motion to be relieved as counsel must be made on Judicial Council

Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053

(Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).) The requisite forms must be served "on the client and on all

parties that have appeared in the case." (Cal. Rules of Court, rule 3.1362, subd. (d).)

DISCUSSION

Mani Arabi of Strategic Legal

Practices, APC (Counsel) seeks to be relieved as counsel for Plaintiff on the grounds that there has been a breakdown of the attorney-client relationship. (Arabi Decl., ¶ 2.) The Court finds this a proper basis for withdrawal. A breakdown in the attorney-client relationship is grounds for allowing the attorney to withdraw. (*Estate of Falco* (1987) 188 Cal.App.3d 1004, 1014.) Grounds for permitting an attorney to withdraw from representation also include the client's conduct that, "renders it unreasonably difficult for the lawyer to carry out the representation effectively[.]" (Rules of Professional Conduct, rule 1.16, subd. (b)(4).)

Counsel has also submitted the notice

of motion and motion, declaration, and proposed order on Judicial Council forms MC-051, MC-052, and MC-053. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

Counsel's declaration also indicates

having confirmed Plaintiff's current address within the past 30 days by mail,

return receipt requested. (Arabi Decl., ¶ 3b(1(a).) Counsel also provided proof of service of the moving papers on Plaintiff.

Moreover, future hearing dates and information in the declaration and proposed order list the hearing dates in this matter. (Arabi Decl., ¶ 5; Proposed Order, ¶ 8.)

Based on the foregoing, the Court GRANTS the motion, effective upon filing proof of service of the signed order on the client.

CONCLUSION

The Court GRANTS Mani Arabi of Strategic Legal Practices, APC's Motion to be Relieved as Counsel for Plaintiff Sergio Machado, effective upon filing proof of service of the signed order on the client.

Counsel is ordered to give notice of the Court's ruling within five calendar days of this order.